SHIONOGI INC. v. SHANGHAI AUZONE BIOLOGICAL TECHNOLOGY CO., LTD. et al

Plaintiff:	SHIONOGI INC.
Defendant:	SHANGHAI AUZONE BIOLOGICAL TECHNOLOGY CO., LTD., AUZONE BIOLOGICAL TECHNOLOGY (USA) LTD. and AUZONE BIOLOGICAL TECHNOLOGY PTY LTD
Case Number:	2:2026cv13323
Filed:	October 13, 2026
Court:	U.S. District Court for the District of New Jersey
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
October 13, 2026	**Filing 2** Corporate Disclosure Statement by SHIONOGI INC.. (DENI, WILLIAM)
October 13, 2026	**Filing 1** COMPLAINT against AUZONE BIOLOGICAL TECHNOLOGY (USA) LTD., AUZONE BIOLOGICAL TECHNOLOGY PTY LTD, SHANGHAI AUZONE BIOLOGICAL TECHNOLOGY CO., LTD. (Filing and Admin fee $ 405 receipt number ANJDC-18058016) , Related Case Selected, filed by SHIONOGI INC.. (Attachments: #1 Exhibit A, #2 Civil Cover Sheet, #3 Certification Pursuant to Local Civil Rules 11.2 and 40.1)(DENI, WILLIAM)

I. Executive Summary and Procedural Information

❒**Parties & Counsel:**

❒**Plaintiff:** Shionogi Inc. (Delaware)

❒**Defendant:** Shanghai Auzone Biological Technology Co., Ltd. (China); Auzone Biological Technology (USA) Ltd. (Delaware); and Auzone Biological Technology Pty Ltd (Australia)

❒**Plaintiff's Counsel:** FBT Gibbons LLP

❒**Case Identification:** 2:26-cv-13323, D.N.J., 10/13/2026

❒**Venue Allegations:** Venue is alleged to be proper based on Defendants' business activities within the judicial district, including the development, manufacturing, and sale of generic drugs. For the foreign-domiciled defendants (Shanghai Auzone and Auzone Pty Ltd), venue is asserted on the basis that a foreign corporation may be sued in any judicial district. For the domestic defendant (Auzone USA), venue is asserted based on an alleged regular and established place of business in New Jersey and acts of infringement committed there.

❒**Core Dispute:** Plaintiff alleges that Defendants' submission of a 505(b)(2) New Drug Application (NDA) to the FDA for a generic edaravone product constitutes an act of infringement of a patent covering an oral suspension formulation of the drug.

❒**Technical Context:** The technology concerns oral suspension formulations of edaravone, an active pharmaceutical ingredient used to treat Amyotrophic Lateral Sclerosis (ALS), a fatal neurodegenerative disease also known as Lou Gehrig's disease.

❒**Key Procedural History:** This is a Hatch-Waxman action triggered by Defendants' filing of NDA No. 219846 and a Paragraph IV certification notice letter, challenging Plaintiff's U.S. Patent No. 12,599,586, which is listed in the FDA's Orange Book for the drug RADICAVA ORS®. The complaint notes numerous other pending infringement actions in the district related to RADICAVA ORS®. Plaintiff Shionogi acquired the RADICAVA ORS® assets from Tanabe Pharma Corporation on April 1, 2026. RADICAVA ORS® also benefits from FDA-granted Orphan Drug Exclusivity until May 12, 2029.

Case Timeline

Date	Event
2018-11-02	'586 Patent Priority Date
2022-05-12	FDA Approval of RADICAVA ORS®
2024-03-28	Orphan Drug Exclusivity granted for RADICAVA ORS®
2025-12-22	Shionogi announces agreement to acquire RADICAVA ORS® business
2026-04-01	Shionogi completes acquisition of RADICAVA ORS® assets
2026-04-14	'586 Patent Issue Date
2026-10-06	Date of Shanghai Auzone's Notice Letter
2026-10-13	Complaint Filing Date
2029-05-12	Orphan Drug Exclusivity for RADICAVA ORS® expires

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,599,586 - “Edaravone suspension for oral administration”

❒**Patent Identification:** U.S. Patent No. 12,599,586 (“Edaravone suspension for oral administration”), issued April 14, 2026. **Compl. ¶38** **’586 Patent, cover page**

The Invention Explained

❒**Problem Addressed:** The patent addresses the need for an oral formulation of edaravone, a treatment for ALS **Compl. ¶6** **’586 Patent, col. 1:50-53** Intravenous administration is burdensome for ALS patients, especially those with dysphagia (difficulty swallowing) **Compl. ¶¶11-12** However, creating an oral drug with bioavailability comparable to an injection is technically difficult due to challenges like gastrointestinal absorption and the first-pass effect in the liver **’586 Patent, col. 24:41-46**

❒**The Patented Solution:** The invention is an oral suspension containing edaravone particles, a dispersant, and water **’586 Patent, abstract** The specification explains that the inclusion of a specific type of dispersant allows the edaravone particles to be uniformly dispersed in water, maintained in a solid state, and quickly redispersed even after settling, a formulation that provides "unexpectedly superior bioavailability" in humans **’586 Patent, col. 25:16-32** The patent’s FIGURE graphically compares the plasma concentration over time for the oral suspension (PO) and an intravenous injection (IV), illustrating their similar pharmacokinetic profiles **’586 Patent, FIGURE**

❒**Technical Importance:** This technology provides an oral administration route for edaravone that is less burdensome for patients and caregivers than intravenous injection while achieving a comparable therapeutic effect **’586 Patent, col. 3:9-14**

Key Claims at a Glance

❒The complaint asserts infringement of one or more claims, including at least independent claim 1 **Compl. ¶49**

❒The essential elements of independent claim 1 of the ’586 Patent include:

❒An edaravone suspension for human oral administration, comprising: water; edaravone particles comprising edaravone and dispersed in the water; and a dispersant.

❒The dispersant functions to disperse the edaravone particles and maintain them in a solid particle state in the water.

❒The suspension is prepared by a process mixing edaravone particles having a D50 particle size of 10 μm to 50 μm and a D90 particle size of 50 μm to 200 μm.

❒The edaravone particles have a dissolution rate of 80% or more 30 minutes after the start of a specified dissolution test.

❒The complaint alleges infringement both literally and under the doctrine of equivalents and reserves the right to assert other claims **Compl. ¶49**

III. The Accused Instrumentality

Product Identification

❒**Product Identification:** The accused product is AUKONTALS, a proposed edaravone product for the treatment of ALS **Compl. ¶20**

Functionality and Market Context

❒The complaint alleges that AUKONTALS is the subject of Defendants' 505(b)(2) NDA No. 219846, which seeks FDA approval to market the product for treating ALS **Compl. ¶20**

❒The NDA relies on Plaintiff's RADICAVA ORS® as the Reference Labeled Drug (RLD) **Compl. ¶20** **Compl. ¶41**

❒The complaint alleges, on information and belief, that the proposed product contains "90 milligrams (3 x 30 milligram tablets) of edaravone" **Compl. ¶40** This description as "tablets" contrasts with the "suspension" claimed in the patent-in-suit.

❒The complaint notes that Plaintiff has not received samples of the accused product **Compl. ¶42**, indicating that its allegations are based on the information contained within Defendants' NDA submission.

IV. Analysis of Infringement Allegations

The complaint alleges that Defendants' submission of NDA No. 219846 for their proposed edaravone product constitutes an act of infringement of at least claim 1 of the '586 Patent **Compl. ¶¶48-50** The complaint does not contain a claim chart or detailed infringement contentions. The following table summarizes the implied infringement theory based on the limited information provided.

No probative visual evidence provided in complaint.

'586 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
An edaravone suspension for human oral administration...	The accused product, AUKONTALS, is an edaravone product for treating ALS, submitted for FDA approval for oral administration **Compl. ¶20** However, the complaint describes the product as "tablets" **Compl. ¶40**, creating an apparent mismatch with the claimed "suspension."	**¶20**; **¶40**; **¶49**	**col. 26:51-53**
...comprising: water; edaravone particles comprising edaravone and dispersed in the water...	The accused product contains edaravone **Compl. ¶40** The complaint does not provide specific details regarding the use of water or the state of the edaravone as dispersed particles.	**¶40**	**col. 26:54-57**
...and a dispersant dispersing the edaravone particles in the water...	The complaint does not provide specific details regarding the presence or identity of a dispersant in the accused product.	**¶49**	**col. 26:58-61**
...the edaravone particles having a D50 particle size in a range of 10 µm to 50 µm and a D90 particle size in a range of 50 µm to 200 µm...	The complaint does not provide specific details regarding the particle size distribution of the edaravone in the accused product.	**¶49**	**col. 27:1-4**

❒**Identified Points of Contention:**

❒**Form Mismatch:** A primary point of contention may arise from the complaint's description of the accused product as "tablets" **Compl. ¶40** while the patent claims a "suspension" **'586 Patent, claim 1** This raises the question of whether a product supplied as a solid tablet can infringe a claim directed to a liquid suspension, which may depend on whether the tablets are intended for reconstitution into a suspension prior to administration.

❒**Evidentiary Gaps:** The complaint's infringement allegations are made "on information and belief" and lack specific factual support mapping elements of the accused product to the patent's claim limitations **Compl. ¶49** The case will likely depend on evidence from the Defendants' confidential NDA submission to prove that the accused product meets the specific particle size and dissolution rate requirements of claim 1.

V. Key Claim Terms for Construction

❒**The Term:** "suspension"

❒**Context and Importance:** This term is central because the patent claims an "edaravone suspension," but the complaint alleges the accused product is in "tablet" form **Compl. ¶40** **'586 Patent, claim 1** The determination of whether the accused product falls within the scope of a "suspension" may be dispositive of literal infringement.

❒**Intrinsic Evidence for Interpretation:**

❒**Evidence for a Broader Interpretation:** The patent specification discusses a "kit for preparing an edaravone suspension" that includes a "solid composition containing the edaravone particles" and a separate "dispersant solution," which are mixed at the time of use **'586 Patent, col. 10:35-44** This could support an argument that the claimed "suspension" encompasses products that are supplied as solids and reconstituted into a liquid form before administration.

❒**Evidence for a Narrower Interpretation:** The claims, abstract, and embodiments consistently refer to the invention as a "suspension," a well-understood pharmaceutical dosage form distinct from a "tablet" **'586 Patent, abstract** **'586 Patent, claim 1** A party could argue the term should be limited to its conventional meaning of a pre-formulated liquid containing undissolved solid particles.

❒**The Term:** "dispersant"

❒**Context and Importance:** The dispersant is a required element that performs the key function of maintaining edaravone particles in a solid, dispersed state **'586 Patent, claim 1** Proving infringement will require identifying a corresponding component with this function in the accused product.

❒**Intrinsic Evidence for Interpretation:**

❒**Evidence for a Broader Interpretation:** The specification provides a list of exemplary dispersants, including polyvinyl alcohol and methylcellulose **'586 Patent, col. 5:2-5** A party might argue that the term should encompass any excipient that performs the broad function of aiding dispersion.

❒**Evidence for a Narrower Interpretation:** The specification provides objective, functional tests to identify a suitable dispersant, such as exhibiting a "transmission scattering light intensity of 1% or more" or a "contact angle of 80 degrees or less" under defined conditions **'586 Patent, col. 4:16-18** **col. 4:47-49** A party could argue that the term is limited to substances that meet these specific, quantifiable criteria taught in the patent.

VI. Other Allegations

❒**Indirect Infringement:** The complaint alleges that upon receiving FDA approval, Defendants will induce and contribute to infringement by commercially manufacturing, using, selling, or importing the accused product **Compl. ¶52** **Compl. ¶55** The alleged basis for inducement would likely be the product's labeling and instructions directing users to administer the product in an infringing manner.

❒**Willful Infringement:** Willfulness is alleged based on Defendants' awareness of the '586 Patent prior to submitting their Paragraph IV certification **Compl. ¶53** The complaint asserts that Defendants proceeded despite an "objectively high likelihood" that their submission constituted infringement, alleging this risk was known or should have been known **Compl. ¶53**

VII. Analyst’s Conclusion: Key Questions for the Case

❒A core issue will be one of **definitional scope:** can the term "suspension", as used and defined in the ’586 Patent, be construed to read on Defendants’ product, which the complaint describes as being formulated in "tablets"? The outcome may depend on the product’s instructions for use and the court's interpretation of whether a product intended for reconstitution is equivalent to a pre-formed suspension.

❒A second central question will be one of **technical proof:** as the case proceeds into discovery, what evidence from Defendants’ confidential NDA will Plaintiff be able to marshal to demonstrate that the accused product meets the specific quantitative limitations of claim 1, particularly the required D50/D90 particle size ranges and the 80% dissolution rate within 30 minutes?

❒Finally, should literal infringement fail on the "suspension" versus "tablet" issue, the case will raise a question of **functional equivalence:** does the accused product perform substantially the same function (oral delivery of edaravone with high bioavailability) in substantially the same way (dispersing solid particles in a liquid for administration) to achieve the same result as the claimed invention, thereby infringing under the doctrine of equivalents?

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UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY

SHIONOGI INC., Plaintiff, v. SHANGHAI AUZONE BIOLOGICAL TECHNOLOGY CO., LTD., AUZONE BIOLOGICAL TECHNOLOGY (USA) LTD., and AUZONE BIOLOGICAL TECHNOLOGY PTY LTD, Defendants.	Civil Action No. 26-13323

COMPLAINT FOR PATENT INFRINGEMENT

Plaintiff Shionogi Inc. ("Shionogi" or "Plaintiff"), by its undersigned attorneys, brings this action for patent infringement against Defendants Shanghai Auzone Biological Technology Co., Ltd. ("Shanghai Auzone"), Auzone Biological Technology (USA) Ltd., and Auzone Biological Technology Pty Ltd (collectively, "Defendants"), and hereby alleges, on knowledge as to its own actions, and on information and belief as to all other matters, as follows:

NATURE OF THE CASE

1. This is an action for infringement by Defendants, under the Patent Laws of the United States, 35 U.S.C. §§ 1 *et seq.*, of Shionogi's United States Patent No. 12,599,586 ("the '586 patent") (the "Patent-in-Suit"), under the United States Patent Laws, 35 U.S.C. §§ 100 *et seq.*, the Federal Food, Drug, and Cosmetic Act, 21 U.S.C. §§ 301 *et seq.*, as well as the Declaratory Judgment Act, 28 U.S.C. §§ 2201-2202.

2. This action arises from Defendants' submission to the United States Food and Drug Administration ("FDA") of 505(b)(2) New Drug Application ("NDA") No. 219846, seeking approval to engage in the commercial manufacture, use, sale, offer for sale and/or importation of its pharmaceutical products before the expiration of the Patent-in-Suit, which is listed in the FDA's publication, *Approved Drug Products with Therapeutic Equivalence Evaluations*, (the FDA's "Orange Book") for RADICAVA ORS®.

3. There are several related patent infringement actions, involving the same drug RADICAVA ORS® and certain of the same patents, pending in this District. *See In re Radicava ORS*, Civil Action No. 25-03326 (D.N.J.) (filed Apr. 25, 2025); *Shionogi Inc. v. Sandoz Inc.*, Civil Action No. 25-16664 (D.N.J.) (filed Oct. 15, 2025); *Shionogi Inc. v. Cipla USA, Inc., et al.*, Civil Action No. 25-16677 (D.N.J.) (filed Oct. 16, 2025); *Shionogi Inc. v. Apotex Inc., et al.*, Civil Action No. 25-16679 (D.N.J.) (filed Oct. 16, 2025); *Shionogi Inc. v. Lupin Ltd., et al.*, Civil Action No. 25-16680 (D.N.J.) (filed Oct. 16, 2025); *Shionogi Inc. v. Zydus Pharmaceuticals (USA) Inc. et al.*, Civil Action No. 25-18032 (D.N.J.) (filed Nov. 29, 2025); *Tanabe Pharma Corp. v. Azurity Pharmaceuticals, Inc. et al.*, Civil Action No. 26-00559 (D.N.J.) (filed Jan. 16, 2026); *Shionogi Inc. v. Cipla USA, Inc., et al.*, Civil Action No. 26-01734 (D.N.J.) (filed Feb. 20, 2026); *Shionogi Inc. v. Lupin Ltd., et al.*, Civil Action No. 26-03893 (D.N.J.) (filed Apr. 13, 2026); *Shionogi Inc. v. Lupin Ltd., et al.*, Civil Action No. 26-06218 (D.N.J.) (filed May 28, 2026); *Shionogi Inc. v. Zydus Pharmaceuticals (USA) Inc. et al.*, Civil Action No. 26-06619 (D.N.J.) (filed June 5, 2026); *Shionogi Inc. v. Sandoz Inc.*, Civil Action No. 26-07063 (D.N.J.) (filed June 12, 2026); *Mitsubishi Tanabe Pharma Corporation v. Cipla USA, Inc., et al.*, Civil Action No. 26-07336 (transferred to D.N.J. on June 18, 2026); *Shionogi Inc. v. Lupin Ltd., et al.*, Civil Action No. 26-07831 (D.N.J.) (filed June 26, 2026); *Shionogi Inc. v. Sandoz Inc.*, Civil Action No. 26-08842 (D.N.J.) (filed July 16, 2026); *Shionogi Inc. v. Cipla USA, Inc., et al.*, Civil Action No. 26-09658 (D.N.J.) (filed July 30, 2026); *Shionogi Inc. v. Azurity Pharmaceuticals, Inc., et al.*, Civil Action No. 26-09805 (D.N.J.) (filed Aug. 3, 2026); *Shionogi Inc. v. Apotex Inc., et al.*, Civil Action No. 26-11105 (D.N.J.) (filed Aug. 26, 2026); and *Shionogi Inc v. Zydus Pharmaceuticals (USA) Inc. et al.*, Civil Action No. 26-12063 (D.N.J.) (filed Sep. 14, 2026).

4. As publicly announced on December 22, 2025, Shionogi entered into an agreement to acquire the global RADICAVA ORS® business from Tanabe Pharma Corporation ("TPC") (formerly known as Mitsubishi Tanabe Pharma Corporation ("MTPC")). As of April 1, 2026, Shionogi acquired ownership and control of the RADICAVA ORS® assets in the United States, including the NDA for RADICAVA ORS® and its Orange Book-listed patents.

5. Pursuant to this transfer of ownership, TPC intends to file motions pursuant to Federal Rule of Civil Procedure 25(c) to address the transfer of interest and to substitute Shionogi as the appropriate Plaintiff.

AMYOTROPHIC LATERAL SCLEROSIS

6. Amyotrophic lateral sclerosis ("ALS"), also known as Lou Gehrig's disease, is a devastating and fatal neurodegenerative disease that causes motor neurons – nerve cells in the brain and spinal cord – to progressively decay and die. When this happens, the brain's ability to control muscle movement is progressively lost as the patient loses the ability to speak, eat, move and eventually breathe. The underlying causes of ALS are not known. Once diagnosed with ALS patients, on average, die within 3 to 5 years from when symptoms first appear, although their quality of life deteriorates substantially throughout their few remaining years. However, in patients diagnosed much later, the survival window is even shorter – often within months. There is no cure for ALS.[1]

7. The care of an ALS patient is burdensome, requiring a team of medical professionals, specialized equipment, and constant attention of a caregiver. Caregivers are often

[1] Information in this paragraph is sourced from www.als.org and the National Institute of Health's "Amyotrophic Lateral Sclerosis fact sheet" (January 2017), available from https://www.ninds.nih.gov/sites/default/files/migrate-documents/ALS_FactSheet-E_508C.pdf and downloaded on September 28, 2025.

relatives who have forgone their occupations in order to care for the daily activities of the ALS patient. The demands of caregiving for an ALS patient take a toll on the health and finances of their caregivers as well. Of the neurodegenerative diseases, ALS is considered one of the most expensive and burdensome, imposing significant direct and indirect costs on the ALS patient, the caregivers, medical professionals, and the healthcare industry.

8. Since 1980, although over one hundred (100+) clinical trials with various compounds have been conducted and published, only four active pharmaceutical ingredients ("APIs") have been approved by the FDA for the treatment of ALS. RELYVRIO®, a drug using one of those APIs, was subsequently withdrawn from the market due to a failed clinical study. RADICAVA ORS® is one of the few drug formulations containing one of the remaining three approved APIs for the treatment of ALS.

RADICAVA ORS®

9. Shionogi is the owner of NDA No. 215446. Through its approval of NDA No. 215446 on May 12, 2022, the FDA granted approval of the first oral suspension formulation containing the edaravone API at a dose concentration of 105 mg/5 mL, available in the United States and marketed and sold under the trade name RADICAVA ORS®.

10. TPC, the prior owner of the RADICAVA ORS® business and assets and developer of RADICAVA ORS®, invested hundreds of millions of dollars in research and development demonstrating the efficacy and safety of RADICAVA ORS® for the treatment for ALS.

11. Although there is no cure for ALS, RADICAVA ORS® helps slow the progression (*i.e.*, loss of physical function) of the disease in ALS patients by approximately thirty-three percent (33%) as compared to a placebo over the same six-month period. Unlike the prior RADICAVA® intravenous ("IV") formulation, RADICAVA ORS® can be administered by the patient or

caregivers at the convenience of a home setting, either orally or via a feeding tube, and in only a few minutes. There is no need to transport the patient to a healthcare facility for IV injection of RADICAVA®.

12. On March 28, 2024, the FDA granted seven years of Orphan Drug Exclusivity for RADICAVA ORS® for the treatment of ALS based upon the FDA's assessment that RADICAVA ORS® constitutes a major contribution to patient care for people living with ALS because it provides patients the clinically superior option of an oral suspension route of administration, reducing the burden patients faced with IV administration of the previously approved RADICAVA® formulation.

13. Pursuant to 21 U.S.C. § 360cc(a)(2) relating to Orphan Drug Exclusivity, the FDA may not approve another application "for the same drug for the same disease or condition for a person who is not the holder of such approved application or of such license until the expiration of seven years from the date of the approval of the approved application or the issuance of the license."

14. The Orphan Drug Exclusivity for RADICAVA ORS® expires on May 12, 2029.

15. The Patent-in-Suit is listed in the Approved Drug Products With Therapeutic Equivalence Evaluations ("Orange Book") in connection with NDA No. 215446 for RADICAVA ORS®.

THE PARTIES

16. Shionogi is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 400 Campus Drive, Florham Park, New Jersey 07932.

17. On information and belief, Defendant Shanghai Auzone is a company organized and existing under the laws of China, with a principal place of business at 19/F, No. 1366 Yangshupu Road, Yangpu District, Shanghai, 200082, P.R. China.

18. On information and belief, Defendant Auzone Biological Technology (USA) Ltd. is a company organized under the laws of Delaware, with a principal place of business at 3500 S Dupont HWY, Dover, DE 19901-6041.

19. On information and belief, Defendant Auzone Biological Technology Pty Ltd is a company organized under the laws of Australia, with a principal place of business in 17 Bungowen Ave, Thornleigh, NSW, Australia 2120.

20. On information and belief, Shanghai Auzone is the holder of 505(b)(2) NDA No. 219846, seeking FDA approval to market AUKONTALS, an edaravone product for the treatment of ALS, relying upon RADICAVA ORS® as the Reference Label Drug ("RLD") and the studies disclosed in NDA No. 215446 for RADICAVA ORS® in seeking abbreviated FDA approval for Shanghai Auzone's 505(b)(2) NDA No. 219846.

21. On information and belief, Defendants are in the business of, inter alia, directly or indirectly, developing, manufacturing, marketing, distributing, selling, offering for sale, and/or

importing generic versions of branded pharmaceutical products throughout the world, including the United States and the State of New Jersey.

22. On information and belief, Defendants collaborate with respect to the development, regulatory approval, marketing, distribution, and/or sale of generic versions of branded pharmaceutical products in the United States, including in the State of New Jersey.

23. On information and belief, Shanghai Auzone, Auzone Biological Technology (USA) Ltd., and Auzone Biological Technology Pty Ltd are agents of one another and/or operate in concert as integrated units of the same corporate group.

24. On information and belief, the acts of Shanghai Auzone, Auzone Biological Technology (USA) Ltd., and Auzone Biological Technology Pty Ltd set forth in this Complaint were done with the cooperation, participation, and assistance of one another.

25. On information and belief, Shanghai Auzone caused Shanghai Auzone's 505(b)(2) NDA No. 219846 to be submitted to FDA and seeks FDA approval of Shanghai Auzone's 505(b)(2) NDA.

26. On information and belief, after obtaining FDA approval of Shanghai Auzone's 505(b)(2) NDA No. 219846, Defendants will act cooperatively to distribute, offer to sell, and sell the proposed infringing products described in Shanghai Auzone's 505(b)(2) NDA No. 219846

throughout the United States, including the State of New Jersey, consistent with their earlier actions with respect to other generic versions of branded pharmaceutical products.

JURISDICTION AND VENUE

27. Shionogi restates, realleges, and incorporates by reference paragraphs 1–26 as if fully set forth herein.

28. This action arises under the Patent Laws of the United States and the Food and Drug Laws of the United States, Titles 35 and 21, United States Code.

29. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331, 1338(a).

30. This Court may exercise personal jurisdiction over Shanghai Auzone because, on information and belief, Shanghai Auzone is a Chinese company and is in the business of manufacturing, marketing, importing and selling pharmaceutical drug products, including generic drug products. On information and belief, Shanghai Auzone directly, or indirectly, develops, manufactures, markets and sells generic drugs throughout the United States and in this judicial district. On information and belief, Shanghai Auzone purposefully has conducted and continues to conduct business in this judicial district, and this judicial district is a likely destination of Defendants' generic products.

31. This Court may exercise jurisdiction over Auzone Biological Technology (USA) Ltd. because, on information and belief, Auzone Biological Technology (USA) Ltd. is in the business of manufacturing, marketing, importing and selling pharmaceutical drug products, including generic drug products. On information and belief, Auzone Biological Technology (USA) Ltd. directly, or indirectly, develops, manufactures, markets and sells generic drugs throughout the United States and in this judicial district. On information and belief, Auzone Biological

Technology (USA) Ltd. purposefully has conducted and continues to conduct business in this judicial district, and this judicial district is a likely destination of Defendants' generic products.

32. This Court may exercise jurisdiction over Auzone Biological Technology Pty Ltd because, on information and belief, Auzone Biological Technology Pty Ltd is an Australian company and is in the business of manufacturing, marketing, importing and selling pharmaceutical drug products, including generic drug products. On information and belief, Auzone Biological Technology Pty Ltd directly, or indirectly, develops, manufactures, markets and sells generic drugs throughout the United States and in this judicial district. On information and belief, Auzone Biological Technology Pty Ltd purposefully has conducted and continues to conduct business in this judicial district, and this judicial district is a likely destination of Defendants' generic products

33. On information and belief, as described in Shanghai Auzone's notification of NDA No. 219846 and the certification under 21 U.S.C. § 355(b)(2)(A)(iv), dated October 6, 2026 ("Shanghai Auzone's Notice Letter"), Shanghai Auzone caused NDA No. 219846 to be submitted to the FDA to seek FDA approval of NDA No. 219846 prior to the expiration of the Patent-in-Suit listed in the Orange Book for RADICAVA ORS®.

34. This Court also has personal jurisdiction over Defendants because Defendants have committed, aided, abetted and participated and/or will commit, will aid, will abet and/or will participate in the commission of acts of patent infringement, including acts in this judicial district, which have led to foreseeable harm and injury to Shionogi in this judicial district.

35. Venue is proper, pursuant to 28 U.S.C. §§ 1391 and/or 1400, in this Court for Shanghai Auzone for reasons stated above and, *inter alia*, on information and belief, because Shanghai Auzone is a foreign corporation and may be sued in any judicial district in the United States.

36. Venue is proper, pursuant to 28 U.S.C. §§ 1391 and/or 1400, in this Court for Auzone Biological Technology (USA) Ltd. for reasons stated above and, *inter alia*, on information and belief, because Auzone Biological Technology (USA) Ltd. has a regular and established place of business in New Jersey and has committed acts of infringement in New Jersey.

37. Venue is proper, pursuant to 28 U.S.C. §§ 1391 and/or 1400, in this Court for Auzone Biological Technology Pty Ltd for reasons stated above and, *inter alia*, on information and belief, because Auzone Biological Technology Pty Ltd is a foreign corporation and may be sued in any judicial district in the United States.

THE PATENT-IN-SUIT

38. Shionogi owns the '586 patent, which was duly and legally issued on April 14, 2026, and is entitled "Edaravone suspension for oral administration." A copy of the '586 patent is attached as Exhibit A.

DEFENDANTS' ABBREVIATED 505(b)(2) NDA

39. On information and belief, Shanghai Auzone submitted to the FDA, and continues to maintain, its abbreviated 505(b)(2) NDA No. 219846 relying upon the RADICAVA ORS® data for FDA approval.

40. On information and belief, Defendants seek approval of 505(b)(2) NDA No. 219846 for a proposed edaravone product containing 90 milligrams (3 x 30 milligram tablets) of edaravone.

41. On information and belief, 505(b)(2) NDA No. 219846 identifies RADICAVA ORS® as the reference listed drug ("RLD").

42. To date, Plaintiff has not received samples of Defendants' edaravone product or the edaravone API used by Defendants.

43. On information and belief, Shanghai Auzone seeks FDA approval of NDA No. 219846 to engage in the commercial manufacture, use, sale, offer for sale and/or importation of its proposed edaravone product.

44. On information and belief, the FDA has not approved NDA No. 219846.

45. On information and belief, Shanghai Auzone sent Shionogi Shanghai Auzone's Notice Letter, purporting to include "Detailed Statement of the Factual and Legal Bases for Shanghai Auzone Biological Technology Co., Ltd. on Behalf of Shanghai Auzone Biological Technology Co., Ltd.'s Paragraph IV Certification Regarding U.S. Patent No. 12,599,586." Shanghai Auzone's Notice Letter stated that Shanghai Auzone had filed NDA No. 219846, seeking approval to manufacture, use, import, offer to sell and/or sell Shanghai Auzone's proposed edaravone products before the expiration of the Patent-in-Suit.

46. On information and belief, the FDA has not determined that Defendants' proposed edaravone product is clinically superior or constitutes a major contribution to patient care as compared to RADICAVA ORS®.

CLAIMS FOR RELIEF

COUNT 1: INFRINGEMENT OF THE '586 PATENT

47. Shionogi restates, realleges, and incorporates by reference paragraphs 1–45 as if fully set forth herein.

48. On information and belief, Defendants submitted and/or caused the submission of 505(b)(2) NDA No. 219846 to the FDA, seeking approval of Defendants' proposed edaravone product in the United States prior to the expiration of the '586 patent.

49. On information and belief, Defendants' proposed edaravone product infringes, literally and/or under the doctrine of equivalents, one or more claims of the '586 patent, including

at least Independent Claim 1 of the '586 patent. For example, on information and belief, differences, if any, between the features of Defendants' proposed edaravone product and the claims of the '586 patent are insubstantial, and Defendants' proposed edaravone product performs substantially the same function in substantially the same way to obtain the same result as the methods and/or products claimed in the '586 patent.

50. Defendants have infringed, pursuant to 35 U.S.C. § 271(e)(2), literally and/or under the doctrine of equivalents, one or more claims of the '586 patent by submitting 505(b)(2) NDA No. 219846 with Shanghai Auzone's Notice Letter, seeking approval of Defendants' proposed edaravone product prior to the expiration of the '586 patent listed in the FDA Orange Book.

51. On information and belief, Defendants intend to and will engage in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of Defendants' proposed edaravone product upon receipt of final FDA approval of 505(b)(2) NDA No. 219846.

52. On information and belief, the importation, manufacture, offer to sell, sale, or use of Defendants' proposed edaravone product in the United States prior to the expiration of the '586 patent will infringe, literally and/or under the doctrine of equivalents, one or more claims of the '586 patent under 35 U.S.C. §§ 271(a), (b) and/or (c).

53. Upon information and belief, Defendants were aware of the '586 patent prior to amending 505(b)(2) NDA No. 219846 to add § 505(b)(2)(A)(iv) allegations with respect to that patent. On information and belief, Defendants amended 505(b)(2) NDA No. 219846 to add § 505(b)(2)(A)(iv) allegations despite an objectively high likelihood that its submission constituted infringement of a valid patent, and this risk was either known to Defendants or so obvious that it should have been known.

54. Shionogi is entitled to entry of an order, pursuant to 35 U.S.C. § 271(e)(4), that the effective date of the FDA approval of 505(b)(2) NDA No. 219846 be a date that is not earlier than the expiration date of the '586 patent or the later expiration of any patent term extension and/or patent term adjustment and any additional periods of exclusivity for the '586 patent to which Shionogi is or becomes entitled.

55. Shionogi is entitled to a declaration that, if Defendants commercially manufacture, use, offer for sale, or sell Defendants' proposed edaravone product within the United States, or import Defendants' proposed edaravone product into the United States, or induce or contribute to such activities, Defendants will infringe one or more claims of the '586 patent under 35 U.S.C. §§ 271(a), (b) and (c).

56. Shionogi will be irreparably harmed if Defendants are not enjoined from Defendants' activities infringing the '586 patent. Shionogi does not have an adequate remedy and an award of damages would not make Shionogi whole.

PRAYER FOR RELIEF

WHEREFORE, Shionogi respectfully requests the following relief:

A. A judgment that Defendants have infringed the Patent-in-Suit pursuant to 35 U.S.C. § 271(e)(2) by submitting 505(b)(2) NDA No. 219846 to the FDA seeking approval of Defendants' proposed edaravone product prior to the expiration of one or more claims of the Patent-in-Suit;

B. A judgment that the commercial manufacture, use, offer to sell, or sale within the United States, and/or importation into the United States, of Defendants' proposed edaravone product described in 505(b)(2) NDA No. 219846 will infringe, induce, and/or contribute to the infringement of one or more claims of the Patent-in-Suit;

C. An order issued pursuant to 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of 505(b)(2) NDA No. 219846 be a date not earlier than the expiration date of the Patent-in-Suit, including any patent term extensions and/or patent term adjustments and any additional periods of exclusivity to which Shionogi is or becomes entitled;

D. An order preliminarily and permanently restraining and enjoining Defendants, Defendants' directors, officers, agents, attorneys, affiliates, divisions, successors, and employees, and those acting in privity or concert with Defendants, from engaging in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of any drug product, or the use thereof, claimed in the Patent-in-Suit, before the expiration date of the Patent-in-Suit, including any patent term extension and/or patent term adjustment and any periods of exclusivity, including Orphan Drug Exclusivity, to which Shionogi is or becomes entitled;

E. A declaration that this is an exceptional case and an award to Shionogi of its reasonable expenses, including attorneys' fees pursuant to 35 U.S.C. § 285;

F. An award to Shionogi of costs incurred in this action; and

G. Such other and further relief as the Court may deem just and proper.

Dated: October 13, 2026
Newark, New Jersey

s/ William P. Deni, Jr.

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